

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ANTIGUA AND BARBUDA

Complete Community Opposition How-To

This guide is built around Antigua and Barbuda's distinctive lever — the right of ordinary residents to challenge a government's development decisions in court, backed by the Escazú Agreement (the regional treaty guaranteeing access to information, participation, and justice) and the defence of communal land — and it names the tools you'll meet in plain words the first time.

INTRODUCTION & FRAMEWORK

After a hurricane emptied **Barbuda** of its people, developers moved in — a private-jet **airport begun without a permit**, a luxury resort on **communal land** — while the island's residents were still displaced. Two of them, a marine biologist and a retired teacher, refused to accept it. The government argued they had **no standing** even to bring a case, and that the case was moot because the runway was nearly finished. But the **highest court to which the nation answers** rejected both arguments: it ruled that residents **do have the right to challenge** such decisions, rebuked the government for treating a years-old village meeting as if it satisfied the planning law, and rested part of its reasoning — for the first time in the region — on the **Escazú Agreement**, the treaty that guarantees a community's environmental rights. The airport had largely been built by then; the fight goes on. But the right to fight it — and to fight the next one — was won, and written into law, setting a precedent that now arms every community in the Caribbean.

The two Barbudans who took on the airport drew on a number of tools available to communities in Antigua and Barbuda. Residents have **standing to challenge** a government's development decisions in court — the right the case established — and protest, petition, and litigation are lawful. The **Escazú Agreement** guarantees access to information, participation, and justice, and the court rested part of its reasoning on it for the first time in the region. **Communal land**, long held in common on Barbuda, is a defensible right. A project needs a **development permit and environmental assessment**, and beginning without one creates an unlawful act a court can be asked to undo. And the **courts**, up to the region's final court, will rebuke that unlawful act. But these tools have real limits, and this guide states them plainly. This was a **procedural and precedent victory, not a physical stop** — the right to challenge was won and the government rebuked, but the airport had largely been built and the fight continues. The community was **small and outmatched** — two residents against a government and wealthy developers, over years and at real cost. And the threat came as **disaster capitalism** — development pushed through while the people were displaced and least able to resist. So winning the right to challenge is real and precious, but it is the **beginning** of the substantive fight, not its end; the case then returns to the lower courts to decide whether the process was unlawful and what remedy should follow.

The Whole Strategy in One Idea

A big project looks unstoppable — especially one already being built — but it's a chain of legal requirements, and a chain breaks at its weakest link. An Antiguan or Barbudan project needs a **development permit and assessment**; it must respect **communal land**; and any unlawful step can be **challenged in court**, because

you have **standing** and the **Escazú Agreement** behind you. Every one of those is a link you can grab — and the right to be heard is the one that turns a half-built project into an unlawful act a court can examine. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend years on this, work out your real situation:

- **If the government began without a permit or on a flawed assessment, that is an unlawful act you can challenge** — building fast doesn't cure it.
- **If they say you have no standing, the right to challenge is itself the first fight** — and, thanks to the Barbuda precedent, a winnable one.
- **If it takes communal land, that shared right is a defensible ground.**
- **If the project is already being built by a government and wealthy developers, expect a long legal war** — aim for the right to challenge, a rebuke, a precedent, and — in time — a remedy, and measure progress step by step.

Read the whole guide once before you move. Two habits run through it: **establish your right to challenge, invoke the Escazú treaty, and take the government to court on the unlawful process, and settle in for a long, step-by-step legal battle**, because a single ruling rarely halts the bulldozers. That's how Barbuda won the law.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A project needs a **development permit** and, for significant projects, an **environmental assessment**, from the planning authority. **Communal land** carries a shared right. The **Escazú Agreement** guarantees information, participation, and access to justice. And the **courts** — up to the **region's final court** — review the legality of decisions and can rebuke an unlawful act. Know which decision you can contest — and, first, secure your standing to contest it.

How a Project Moves — and Where You Jump In

The permit and assessment. The project needs its permit and assessment. *Your opening:* a project begun **without a permit**, or on a **flawed assessment**, is an unlawful act.

Access and participation. *Your opening:* assert your **Escazú rights** to information and participation, and demand the records.

The court challenge. *Your opening — the decisive one:* establish your **standing** and the **unlawful process**, and take it to court — even after building has begun.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — the government, the developer, and any international capital, whose reputation you can reach. **What it skipped** — the permit not obtained, the assessment produced late or unfit, the real consultation never held: these are the unlawful acts. **What communal land it takes** — because that shared right is defensible.

Who's Supposed to Be Watching

Each is an ally or an arena. The **planning authority** grants the permit and assessment. The **courts** — up to the region's final court — review legality and can rebuke an unlawful act. The **Escazú Agreement** guarantees your rights. And Antigua and Barbuda's **residents, community and land-rights organisations, and international legal networks** are the forces that reach furthest — the support that carried the Barbuda case.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the process was unlawful, whether you can establish standing, and whether you can sustain a long legal fight.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Assert Escazú information/participation rights	25–50%	weeks–months	low	Records forced out; a place in the process
Establish standing to challenge	40–65%	months–yr	low–mod	The right to be heard (Barbuda)
Challenge an unlawful permit/assessment	30–55%	1–3 yr	mod	Government rebuked; process reviewed
Defend communal land	25–50%	months–yr	mod	Shared right upheld
International legal network + attention	30–55%	months–yr	low	A small island's case carried
Remedy (after the right is won)	20–45%	years	mod	An order to undo or make good
Everything together (unlawful process, standing, treaty, persistence)	40–65%	years	mod	Right won, rebuke, precedent, remedy
Everything together (project already built)	20–45%	years	mod	Precedent; rebuke; partial remedy

The lever that moves the needle most is the **right to challenge** — the standing to be heard, backed by the Escazú treaty — which turns a half-built project into an unlawful act a court can examine. Barbuda shows the ceiling (a precedent that arms the region) and the honest floor (a procedural win, the airport largely built, the fight ongoing). So aim for the right to challenge, a rebuke, a precedent, and — in time — a remedy, and measure progress step by step.

*On cost: asserting Escazú rights and documenting are cheap; litigation is costly and slow, but **international legal networks** carried the Barbuda case, so reach them. The great strength is that the right to be heard, once won, arms not only you but every community after — and the great requirement is patience, because this is a long, step-by-step fight.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this missing permit, this flawed assessment, this communal land — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the government body, the developer, and any international capital.

2. Where is it, and what does it touch? Map it over **communal land, forest, coast, and reef. Communal land, and an unlawful process, are your sharpest levers.**

3. What did it skip? Was it **begun without a permit**? Was the **assessment produced late or unfit**? Was the **real consultation never held**? These are the unlawful acts a court examines.

4. What stage is it at? Even if building has **begun**, that doesn't cure an unlawful process — it creates the very act a court can review. Establish where it stands.

5. Who can carry the case, and who else is affected? Residents willing to bring the challenge, community and land-rights organisations, and international legal networks. Barbuda's case rested on two determined residents and an international network.

What this looks like in real life. A government and a developer push a resort or airport onto communal land, without a proper permit, while the community is displaced or unaware. The five questions yield: a government and developer; communal land at stake (the lever); an unlawful process (no permit, a late assessment); a project already begun (the reviewable act); and residents and a legal network to carry it. That's the Barbuda pattern — establish standing, invoke Escazú, and challenge the unlawful process.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Barbuda the decisive proof was the unlawful process. Build it in three layers.

Layer one: the unlawful act. Get the documents the project rests on — the permit (or prove none was obtained), the environmental assessment (and show if it was late or unfit), the consultation record (and show if a real one never happened), the communal-land status. Use your **Escazú information rights** to force out what's withheld. The unlawful step is the heart of the case.

Layer two: the communal land and ground truth. Document the **communal land** and its long-held common status, and gather dated, located photographs of the forest, coast, and reef being cleared, and the testimony of residents. This is the harm and the shared right.

Layer three: the map of the unlawful project. Lay the project over the communal land and the cleared ground, so the unlawful act and the harm are undeniable. Walking into court — with your standing, the Escazú treaty, and the unlawful process documented — is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The permit (or proof none exists), the assessment (and its flaws), the consultation record, the communal-land status** — from the planning authority; force out the rest under Escazú (8A).
- **Proof of the unlawful act** — no permit, a late or unfit assessment, no real consultation.
- **Proof of communal land** — its long-held common status.
- **The map of the unlawful project** — the communal land and the cleared ground, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; determined residents and a legal network give you power — the Barbuda model. Build in four moves.

Find the residents who will stand. The Barbuda case rested on two residents willing to bring it — a marine biologist and a retired teacher — and to persist for years. Find and support those who will stand, and rally the displaced and affected community behind them.

Reach an international legal network. A small island cannot carry such a case alone. Reach the **international legal networks** that will carry a community's environmental case to the region's highest court, as they carried Barbuda's.

Assert the right to be heard and the Escazú rights. If the government says you have no standing, make **that** the first fight — and win it, as Barbuda did. Assert your Escazú rights to information, participation, and justice throughout.

Build to last — for years. These are long legal battles against a government and developers who began before you could object. Build clear roles, a secure archive, a way to decide together, a plan for the cost and the toll, and the resolve to measure progress step by step — the right to be heard, a rebuke, a precedent, and, in time, a remedy.

STEP 4: LEGAL CHALLENGES, STANDING & THE ESCAZÚ TREATY

Antigua and Barbuda's sharpest lever is the right to challenge an unlawful development decision in court, backed by the Escazú treaty.

Establish Your Standing — the First Fight

The Barbuda foundation: where the government says you have **no standing**, establish that you **do** — that residents may challenge development decisions that affect them. This was Barbuda's first and precedent-setting win, and it arms every community after. Winning the right to be heard makes every other lever usable.

Challenge the Unlawful Process

A project **begun without a permit**, or on a **flawed or late assessment**, or without **real consultation**, is an **unlawful act** a court can review — and, in principle, order undone — no matter how much has been built. Establish the unlawful process; it is the substance of the case.

The Escazú Agreement and the Courts

Invoke the **Escazú Agreement** — the regional treaty guaranteeing **access to information, participation, and justice** — which the region's highest court leaned on for the first time in the Barbuda case, and take the challenge to the **courts**, up to the region's final court. The treaty strengthens your standing and your rights at every step.

The Honest Limits

Straight talk: the right to challenge, the Escazú treaty, and the courts are real and powerful, but a win may be **procedural** — the right established, the government rebuked, a precedent set — while the project is

largely built and the substantive fight and remedy come later. So use the strong tools — the standing, the unlawful-process challenge, the Escazú treaty, the courts — persist, and count the right to challenge, a rebuke, a precedent, and — in time — a remedy as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A half-built project becomes an unlawful act. Not "stop the bulldozers" but *"the government began without a permit — an unlawful act the court can review, however much is built."*

"No standing" becomes the first win. *"Residents have the right to challenge decisions that affect them,"* as Barbuda established.

A treaty becomes a guarantee. *"The Escazú Agreement guarantees our access to information, participation, and justice — and the court has leaned on it."*

Communal land becomes a shared right. *"This land is held in common by our community — it cannot be taken so."*

Match it to the venue: the standing and the unlawful process to the courts; the information and participation to Escazú; the communal land to the courts and the public; the precedent to every community after.

STEP 5: MEDIA STRATEGY

In Antigua and Barbuda, national and international attention amplifies a small community's legal fight and its precedent. A free press and international legal networks make the media front central.

Lead with the injustice and the right, not procedure. Not "the assessment was unfit" but "an airport bulldozed onto communal land while the people were displaced — and two residents who won the right to drag it before a judge." Use your strongest material: the unlawful process, dated photographs of the clearing, and the human story of the residents who stood.

Work several audiences at once. Local and national press build the pressure; international and regional networks carry the case and the Escazú precedent, where a small island's fight gains weight. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And support the residents who stand, and let the community shape its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Escazú information request (to the authority).

Subject: Request for the permit and assessment — [project].

"Under the Escazú Agreement, we, residents of [place], request the development permit, the environmental assessment, the consultation record, and the communal-land status for [project] at [location]. [Contact.]"

8B — Asserting standing and Escazú rights.

Subject: Our right to be heard on [project].

"We, residents of [place], assert our right to challenge the decision on [project], and our Escazú rights to information, participation, and justice, as established in the Barbuda case. [Contact.]"

8C — Objection (the unlawful process).

Subject: Objection — [project].

"We, residents of [place], object to [project]: [it was begun without a permit; the assessment was late/unfit; no real consultation was held; it takes communal land]. This is unlawful. [Attach evidence.]"

8D — To an international legal network.

Subject: Development on communal land — [project].

"Our community faces [project], begun without a proper permit on our communal land, while we were [displaced/unaware]. We've gathered [the unlawful process, the communal-land status]. We ask for your help to carry our case, as with Barbuda. [Contact and evidence summary.]"

8E — Court challenge (to a lawyer).

Subject: Challenge — [project].

"We instruct you to challenge the decision on [project], on the grounds that [it was begun without a permit / the assessment was unfit / we were not consulted], establishing our standing and invoking the Escazú Agreement. [Attach the record and our evidence.]"

8F — To the developer / international capital.

Subject: Legal and reputational risk in [project].

"We are the community affected by [project] at [location], on our communal land. It was begun unlawfully and faces legal challenge under the Escazú Agreement. As at Barbuda, this carries real legal and reputational risk. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to challenge [project] on communal land.

"[Project] was bulldozed onto our communal land, without a proper permit, while we were [displaced]. We have won the right to challenge it. We can provide the evidence, photographs, and interviews. [Contact.]"

8H — Rallying the community.

Subject: We have the right to be heard — here's how.

"[Project] threatens our communal land, begun without a permit. At Barbuda, two residents won the right to drag such a project before a judge, and set a precedent for the whole region. If we establish our standing and invoke the Escazú treaty, we can challenge this too. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish the unlawful act — no permit, a flawed assessment, no real consultation.** That's your case.
2. **Assert your standing and Escazú rights (8B), and request the records (8A).**
3. **Document the unlawful process and the communal land, with dated photographs.**
4. **Reach an international legal network to carry the case (8D).**
5. **Challenge the decision in court (8E), invoking the Escazú Agreement.**
6. **Go public (8G), and settle in for a long, step-by-step fight.**

Even lean, those six establish the right to challenge, invoke the treaty, and take the unlawful process to court — the Barbuda template.

WHEN THE SYSTEM IS TILTED

Antigua and Barbuda's tools are real, but the field can be tilted, and you must plan for it.

When they say you have no standing. That is the first fight — and, thanks to Barbuda, a winnable one. Establish your right to be heard.

When the project is already being built. Building fast doesn't cure an unlawful process — it creates the act a court can review. Challenge it anyway.

When it's disaster capitalism. Development pushed through while people are displaced is at its most vulnerable to a legal challenge on process. Document the unlawful haste and the absent consultation.

When the win is only procedural. The right to challenge is the beginning, not the end. Carry the case back to the lower courts for the substantive ruling and a remedy, step by step.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Antigua and Barbuda has real concerns about the closeness of developers to land and permitting decisions, so this matters.

How to spot it. Permits skipped or backdated; assessments produced late or unfit; communal land handed to developers; benefits to the connected while a displaced community loses its land.

Who's supposed to guard against it. The **Director of Audit** examines public money. Integrity and anti-corruption bodies handle conduct. The **courts** — up to the region's final court — can rebuke an unlawful act. And the nation's **press, civil society, and international legal networks** have carried captured decisions to court.

How to fight it safely. Document precisely and factually — the skipped permit, the unfit assessment, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Director of Audit, the integrity bodies, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the standing and Escazú

challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, over a long road. The documents and the unlawful-process proof build your case; your standing unlocks the courts; the Escazú treaty strengthens every step; the communal land is the shared right; the international network carries it; the press builds the pressure. Together they multiply. One at a time, they stall — and measure progress step by step.

Early on (weeks–months): establish the unlawful act; assert your standing and Escazú rights; request the records; document the communal land; find the residents who will stand and reach a legal network.

In the thick of it (months–years): challenge the decision in court, winning your standing; invoke the Escazú Agreement; open the media front, local to international.

The long haul (years): carry the case to a rebuke and a precedent, then back to the lower courts for a remedy; keep the community and the network engaged; hold the line for the right to challenge, a rebuke, a precedent, and — in time — a remedy.

FINAL ASSESSMENT

Challenging a destructive project in Antigua and Barbuda can be done — two ordinary residents forced the region's highest court to rein in a government that built without permission, and won a precedent that arms every community in the Caribbean. Hold both truths. The nation's distinctive power is real: community members have the right to challenge development decisions in court; the Escazú Agreement guarantees access to information, participation, and justice; and a project already begun, if begun unlawfully, becomes the very act a court can examine. And the constraints are real: a win may be procedural, not a physical stop; the community is often small and outmatched; and the threat comes as disaster capitalism, pushed through while people are displaced.

Here's the discipline that wins. Establish the unlawful act — the missing permit, the flawed assessment, the absent consultation — and, if the government says you have no standing, make that the first fight and win it, as Barbuda did. Assert your Escazú rights to information, participation, and justice, defend your communal land, and take the challenge to court, up to the region's final court, invoking the treaty. Reach an international legal network to carry the case, support the residents who stand, and settle in for a long, step-by-step battle — the right to be heard, a rebuke, a precedent, and, in time, a remedy — because a single ruling rarely halts the bulldozers. Count each of those as a real win. That's what Barbuda did — the right to challenge, the Escazú treaty, and the defence of communal land together. So can you.